

IN THE SUPREME COURT OF BANGLADESH

HIGH COURT DIVISION

(CIVIL REVISIONAL JURISDICTION)

Civil Revision No. 4039 of 2004

In the matter of:

Md. Ashraf Haque and others.

...Petitioners.

-Vs-

Md. Mostafa and others.

....Opposite parties.

None appears

...For the petitioners.

Ms. Syeda Afsar Jahan, Sr. Adv.

...For the opposite parties.

Present
Mr. Justice Mamnoon Rahman

Heard & judgment on: **The 16th November, 2024**

In an application under section 115(1) of the Code of Civil Procedure, 1908 rule was issued calling upon the opposite parties to show cause as to why the judgment and order dated 14.03.2004 passed by the learned Joint District Judge, First Court, Chapainawabgonj in Misc. Appeal No. 7 of 2001 affirming the judgment and order dated 29.08.2000 passed by the learned Assistant judge, Gomostapur in Miscellaneous Case No. 32 of 1997 should not be set aside and/or pass such other or further order or orders as to this court may seem fit and proper.

The short facts relevant for the disposal of this rule, is that, the present petitioner filed an application for restoration of Title Suit No. 57 of 1987 after setting aside the order of dismissal dated 23.09.1997. The court below registered the case as miscellaneous case and proceeded with the same. Both the parties adduced

evidence both oral and documentary. The trial court after hearing the parties and considering the facts and circumstances vide the order dated 29.08.2000 dismissed the miscellaneous proceeding and thereby affirmed the judgment and order of dismissal dated 23.09.1997. Against which the petitioner preferred appeal before the learned District Judge, Chapainawabgonj being Miscellaneous Appeal No. 7 of 2001. The said appeal was heard and disposed of by the Joint District Judge, 1st Court, Chapainawabgonj who vide the impugned judgment and order dated 14.03.2004 dismissed the appeal and thereby affirmed the judgment and order passed by the trial court. Being aggrieved and dissatisfied with the aforesaid judgment and order the petitioner moved before this court and obtained the present rule.

No one appears on behalf of the petitioner to press the rule.

Ms. Syeda Afsar Jahan, the learned senior Advocate appearing on behalf of the opposite parties vehemently opposes the rule and submits that the court below on proper appreciation of the facts and circumstances, materials on record, evidence both oral and documentary passed the impugned judgment and order passed by the court below which requires no interference by this court.

I have heard the learned Advocate for the opposite parties. I have perused the impugned judgment and order passed by the trial court as well as appellate court, revisional application, grounds

taken thereon as well as necessary papers and documents annexed herewith.

On perusal of the same, it transpires that admittedly the Title Suit No. 57 of 1987 was fixed for final hearing before the trial court wherein the petitioners filed an application for an adjournment and the trial court however, dismissed the same. Being aggrieved and dissatisfied with the said order the petitioners preferred Miscellaneous Case being No. 32 of 1997 wherein both the parties adduced evidence both oral and documentary. On perusal of the same, it transpires that the trial court after elaborate discussion came to a conclusion that the petitioners are habitual defender and earlier the suit was dismissed for default and the same was restored in a miscellaneous proceeding. It further transpires that though it has been argued that the petitioner was sick but the content of the application for an adjournment was different as much as the petitioner also failed to adduce any medical evidence to show the illness. It further transpires that the lower appellate court also *vividly* discussed the facts and circumstances and came to a conclusion that the suit was fixed on numerous occasions before disposing the suit. It also transpires that the lower appellate court also considered the earlier disposal of the suit and came to clear conclusion that the trial court committed no error or misreading of

evidence which requires interference by this court. Hence, I find no reason to interfere with the same.

Accordingly, the instant rule is discharged and the impugned judgment and order passed by the court below is hereby affirmed.

However, there shall be no order as to cost.

(Mamnoon Rahman,J:)